

Calendar line 1**Case Name:** THE ANTHONY MARQUES REVOCABLE TRUST**Case No.:** 26PR202377**INTRODUCTION**

In 2021, settlor Anthony Marques (“Decedent”) executed the Anthony Marques Revocable Trust. Thereafter, he executed two amendments. Decedent passed away in August 2025.

On April 13, 2026, Jason Cervantes, Jerome Cervantes, and Jesse Cervantes (“Petitioners”), the adult children of Sherie Marques, Decedent’s daughter, and trust beneficiaries, filed a petition to invalidate the second amendment to the trust, for financial elder abuse, for return of property, to preclude the use of trust funds to defendant against trust contest, to suspend and remove the trustee, and to compel the trustee to account (“Petition”).

On July 20, 2026, Richard Marques (“Respondent”), the current trustee, filed a demurrer targeting each cause of action in the Petition. On July 23, 2026, Petitioners filed an amended Petition. Currently before the court is Respondent’s demurrer, which Petitioners have not opposed.

DISCUSSION

As mentioned above, after the demurrer was filed, Petitioners filed an amended Petition. Accordingly, the demurrer is MOOT. (Code Civ. Proc., § 472, subd. (a) [plaintiff may file an amended complaint without leave of court and despite the filing of a demurrer until the time to file an opposition to a demurrer has passed]; *Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054 [the filing of an amended complaint renders a demurrer to the prior complaint moot]; *State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131 [“the filing of an amended complaint moots a motion directed to a prior complaint”].) The demurrer is DENIED for mootness. In the future, moving party is instructed to take the matter the off calendar.